

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                       |                           |                                                        |                                               |                                            |
|---------------------------------------------------|-------------------------------------------------------|---------------------------|--------------------------------------------------------|-----------------------------------------------|--------------------------------------------|
| Investigator:<br>Sara Asselman                    | Team:<br>Squad #04                                    | CCRB Case #:<br>202207059 | <input checked="" type="checkbox"/> Force              | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                   |                                                       |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 10/11/2022 6:54 PM   | Location of Incident:<br>Avenue D and East 8th Street | 18 Mo. SOL<br>4/11/2024   | Precinct:<br>09                                        |                                               |                                            |
| Date/Time CV Reported<br>Tue, 10/11/2022 10:25 PM | CV Reported At:<br>IAB                                | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 10/19/2022 11:18 AM |                                               |                                            |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |

| Subject Officer(s)          | Shield | TaxID  | Command |
|-----------------------------|--------|--------|---------|
| 1. PO Jordan Gatesrollins   | 06211  | 966589 | PSA 4   |
| 2. PO Schedler Jeanbaptiste | 05746  | 966120 | NARCBMS |
| 3. PO Venessia Veeria       | 22971  | 970288 | PSA 4   |

| Witness Officer(s)            | Shield No | Tax No | Cmd Name |
|-------------------------------|-----------|--------|----------|
| 1. PO Liam Heslin             | 02765     | 972693 | PSA 4    |
| 2. LT Bolivar Parreno         | 00000     | 949449 | PSA 4    |
| 3. PO Michael Faught          | 24576     | 965085 | PSA 4    |
| 4. PO Guynel Saintval         | 25279     | 947698 | PSA 4    |
| 5. PO Andrea Sanchez          | 20802     | 971662 | PSA 4    |
| 6. PO Edison Bonillasamaniego | 04555     | 973058 | PSA 4    |
| 7. PO Augustine Gonzalez      | 04096     | 950514 | PSA 4    |

| Officer(s)                   | Allegation                                                                                  | Investigator Recommendation |
|------------------------------|---------------------------------------------------------------------------------------------|-----------------------------|
| A . PO Jordan Gatesrollins   | Force: Police Officer Jordan Gatesrollins struck § 87(2)(b) with a vehicle.                 | A . Unable to Determine     |
| B . PO Jordan Gatesrollins   | Abuse: Police Officer Jordan Gatesrollins damaged § 87(2)(b) property.                      | B . Substantiated           |
| C . PO Schedler Jeanbaptiste | Abuse: Police Officer Schedler Jeanbaptiste threatened an individual with the use of force. | C . Substantiated           |
| D . PO Schedler Jeanbaptiste | Discourtesy: Police Officer Schedler Jeanbaptiste spoke discourteously to an individual.    | D . Substantiated           |
| § 87(2)(g), § 87(4-b)        |                                                                                             |                             |

### Case Summary

§ 87(2)(b) filed this complaint on October 11, 2022, at IAB, via telephone. The CCRB received this complaint on October 19, 2022.

On October 11, 2022, at approximately 6:54pm, § 87(2)(b) and his companion, § 87(2)(b) were walking with a bicycle and electric scooter, near the entrance to the § 87(2)(b) at the intersection of East 8<sup>th</sup> Street and Avenue D in Manhattan. PO Jordan Gates-Rollins, of PSA4, was driving a marked SUV into the development, with his partner, PO Liam Heslin. PO Gates-Rollins allegedly struck § 87(2)(b) leg, thigh, and bicycle, with the vehicle (**Allegation A: Force, Unable to Determine**). PO Gates-Rollins damaged § 87(2)(b) bicycle (**Allegation B: Abuse of Authority, Substantiated**). PO Schedler Jeanbaptiste, of the Manhattan South Narcotics Bureau, said while speaking to an unidentified bystander, § 87(2)(b) “I will put that down and still whoop his ass,” and “I’ll take you one on one. I get off at 11:30. Pull up to the precinct” (**Allegation C: Abuse of Authority, Substantiated**) (**Allegation D: Discourtesy, Substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

This incident did not result in any arrests or summonses.

The CCRB obtained BWC footage (Board Review 01) and cellphone video of this incident (Board Review 02).

### Findings and Recommendations

**Allegation (A) Force: Police Officer Jordan Gates-Rollins struck § 87(2)(b) with a vehicle.**

**Allegation (B) Abuse of Authority: Police Officer Jordan Gates-Rollins damaged § 87(2)(b) property.**

On October 11, 2022, at approximately 6:54pm, § 87(2)(b) was riding his bicycle northbound on the eastern sidewalk of Avenue D, at its intersection with East 8<sup>th</sup> Street in Manhattan (Board Review 03). This is also a driveway leading to one of the entrances to § 87(2)(b) § 87(2)(b). PO Gates-Rollins, who was driving a marked SUV, made a left turn onto the driveway at the same time. § 87(2)(b) came to an abrupt stop approximately two inches away from the front of the marked SUV. PO Gates-Rollins asked him what he was doing and told him to get out of the way. § 87(2)(b) attempted to move out of the marked SUV’s way, but his bicycle was not fast enough. PO Gates-Rollins started to drive again while § 87(2)(b) was still partially in front of the marked SUV. § 87(2)(b) moved his body off the bicycle, but his left leg was caught on the bicycle chain. The marked SUV struck § 87(2)(b) left leg and thigh. The marked SUV’s front left tire drove over § 87(2)(b) bicycle’s back tire, causing damage to it.

§ 87(2)(b) provided seven photos of the back tire of his bicycle (Board Review 04). They each depict varying angles of a chain that has come off its gear, and a bent kick stand.

§ 87(2)(b) did not respond to contact attempts to obtain a statement.

PO Gates-Rollins recorded BWC footage of this incident (Board Review 01). The footage begins with a sixty-second-long buffer, with no audio, which depicts events before a BWC has been activated. At 00:08, § 87(2)(b) and § 87(2)(b) appear in front of the marked SUV that PO Gates-Rollins is driving. At 00:10, § 87(2)(b) appears closer to the top left corner of the frame, which corresponds with the portion of the marked SUV’s driver’s side window closest to the sideview mirror. § 87(2)(b) is looking directly in PO Gates-Rollins’ direction. At 00:11, § 87(2)(b) head can be seen on the left of the frame, past the marked SUV. This footage does not

show whether the marked SUV struck § 87(2)(b) body or bicycle. At 00:18, PO Gates-Rollins exits the marked SUV and approaches § 87(2)(b) and § 87(2)(b). At 01:00, § 87(2)(b) says, “You’re on the sidewalk. You couldn’t wait till we pass? Do you not see us?” At 01:30, a crowd gathers nearby and a male individual, § 87(2)(b), shouts, “Go to the hospital,” repeatedly in § 87(2)(b) direction. PO Gates-Rollins makes a phone call and says, “I was coming over to this job, and I got lights and everything on, coming through... like turning into the development, and the guy stops, he sees me like coming in with the lights. And then he starts going, and then he stops, so I hit his bike.” Up to the 02:28 mark, § 87(2)(b) is seen standing and walking. At 02:50, PO Gates-Rollins says, “I was coming in... oh now he’s laying on the floor.” At 02:59, § 87(2)(b) is sitting on the floor with his legs stretched out in front of him and his back upright.

§ 87(2)(b) provided a cellphone camera video, recorded by an unidentified individual, § 87(2)(b) (Board Review 02). This video does not depict the moment where PO Gates-Rollins allegedly struck § 87(2)(b). At 00:01, § 87(2)(b) is standing less than an arm’s length away from PO Gates-Rollins and speaking to him. § 87(2)(b) continuously shouts, “You hit him, you hit him.” At 00:48, a female voice is heard saying, “Fall on the floor. Your leg is [inaudible].” § 87(2)(b) repeatedly shouts, “Go to the hospital, go to the hospital.” At 00:56, § 87(2)(b) is still standing and walking. At 02:06, a male voice is heard saying, “Sit. Sit on the bike right here.” At 02:38, § 87(2)(b) says, “So what he was just standing? He is going to the hospital now,” twice. At 02:42, § 87(2)(b) is laying on the ground, next to his bicycle.

PO Gates-Rollins testified that he was responding to a 911 call about a child having difficulty breathing inside 118 Avenue D, in Manhattan (Board Review 06). He was driving down Avenue D with his lights and siren activated. He made a turn onto the entrance to the § 87(2)(b) at East 8<sup>th</sup> Street. This entrance is typically only used by emergency services or § 87(2)(b) motor vehicles. As he was making the turn, PO Gates-Rollins saw § 87(2)(b) walking a bicycle, near the right side of the vehicle. PO Gates-Rollins stopped his vehicle and honked his horn and waited for § 87(2)(b) and § 87(2)(b) to walk across the driveway, approximately two seconds. When he believed he had clearance, PO Gates-Rollins began driving again. The left side of his vehicle struck § 87(2)(b) bicycle’s back tire. PO Gates-Rollins stopped and exited his vehicle and § 87(2)(b) began to shout at him. Approximately two and half or three minutes passed between the time he stopped his vehicle and the time § 87(2)(b) laid on the ground, after members of the crowd that had gathered encouraged him to go to the hospital.

PO Heslin’s testimony was materially similar to PO Gates-Rollins’ (Board Review 07). He felt a slight bump when the vehicle struck what he believed was § 87(2)(b) bicycle. § 87(2)(b) became combative by stepping close to PO Gates-Rollins’ face and yelling at him. He heard members of the crowd encourage § 87(2)(b) to lie down and go to the hospital.

The footage recorded by PO Gates-Rollins does not clearly depict whether his vehicle struck § 87(2)(b) body. The same footage and the footage recorded by § 87(2)(b) show § 87(2)(b) standing and walking for approximately three minutes before lying down on the ground. Both recordings also depict individuals encouraging § 87(2)(b) to go to the hospital. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that Allegation A be closed as **Unable to Determine**.

Onderdonk v. State, 170 Misc. 2d 155 (1996), dictates that police officer may damage property only when it is reasonably necessary to carry out their police duties (Board Review 08).

§ 87(2)(b) also reported that the back tire of his bicycle was struck. This is consistent with PO Gates-Rollins' and PO Heslin's statements, as well as the photographs he provided. § 87(2)(g)

It is recommended that **Allegation B** be **Substantiated**.

**Allegation (C) Abuse of Authority: Police Officer Schedler Jeanbaptiste threatened an individual with the use of force.**

**Allegation (D) Discourtesy: Police Officer Schedler Jeanbaptiste spoke discourteously to an individual.**

§ 87(2)(b) testified that while he was on the ground, he heard an officer say to a civilian, "I get out of work at 11 o'clock. Come meet me at the Precinct and we could fight." He heard him say that he would turn off his BWC and that he did not mind fighting. § 87(2)(b) did not know which officer said this and to whom.

In PO Heslin's BWC footage at 06:48, § 87(2)(b) makes partially inaudible statements about dashcam footage. PO Jeanbaptiste says, "I'm not talking to you. I'm talking to him," to another male civilian, § 87(2)(b) who stands several feet away from him. PO Jeanbaptiste says, "Calm yourself. Stay in your lane." § 87(2)(b) says, "I don't care who you're talking to." PO Jeanbaptiste tells § 87(2)(b) to "stay in his lane," repeatedly. Then he says, "You're standing over there talking. Shut up." § 87(2)(b) says, "You shut up." PO Jeanbaptiste then says, "Come say it to my face. Walk up to me and say it." § 87(2)(b) says, "I'm right here." PO Jeanbaptiste replies, "O.K. I thought so." § 87(2)(b) approaches § 87(2)(b) and pushes him back away from the officers. § 87(2)(b) says, "What the fuck is you talking about." PO Jeanbaptiste says, "Keep your mouth shut. Keep your mouth shut. You're talking from over there, you're not going to do nothing." He adds, "So come do something. I will put that down and still whoop his ass." § 87(2)(b) says, "I'll fuck you up." PO Jeanbaptiste says, "I took it off right now, you can do something about it. I thought. I thought so." § 87(2)(b) speaks inaudibly and PO Jeanbaptiste responds, "I'll take you one on one. I get off at 11:30, pull up to the precinct." § 87(2)(b) says, "You're an officer, man. Do your job."

PO Jeanbaptiste testified that he responded to the location to assist with crowd control, following the incident involving PO Gates-Rollins' vehicle and § 87(2)(b) (Board Review 11). He described the crowd as irate because some members shouted profanities at him and other officers, which indicated to him that his and others' safety may be threatened. After reviewing the footage recorded by PO Heslin, PO Jeanbaptiste acknowledged hearing himself say, "Come do something. I will put that down and still whoop his ass." He said this because § 87(2)(b) made a comment about his badge, and wanted to convey that the badge does not make him who he is. He said, "Come say it to my face," because § 87(2)(b) was standing far away from him, and so that he could hear him better. PO Jeanbaptiste also acknowledged saying, "I will take you one-on-one, I get off at 11:30." PO Jeanbaptiste said this to § 87(2)(b) so that if he wanted to discuss this further, he could come to the precinct where he worked, at the time he finished. PO Jeanbaptiste did not have any intention of using force in his duty regarding crowd control. He did not receive any instructions from a supervisor to do so. He did not observe any events requiring the use of force.

Patrol Guide Procedure 200-02 states that the department is committed to "accomplishing its mission [...] with compassion, courtesy, professionalism, and respect" (Board Review 12).

Patrol Guide Procedure 221-02 directs officers to “utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force and increase the likelihood of gaining the subject’s voluntary compliance” (Board Review 13).

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be **Substantiated**.

§ 87(2)(g), § 87(4-b)

#### Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Jordan Gates-Rollins has been a member of service for four years and has been a subject in seven CCRB complaints and thirteen allegations, none of which were substantiated. § 87(2)(g)
- PO Venessia Veeria has been a member of service for two years and this is the first CCRB complaint to which she has been a subject (Board Review 14).
- PO Schedler Jeanbaptiste has been a member of service for five years and has been a subject in two CCRB complaints and fourteen allegations, none of which were substantiated. § 87(2)(g)

#### Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York (Board Review 15). As of September 29, 2023, there is no 50H hearing scheduled.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

Squad No.: #4

|               |               |                    |            |
|---------------|---------------|--------------------|------------|
| Investigator: | Sara Asselman | Inv. Sara Asselman | 10/03/2023 |
|               | Signature     | Print Title & Name | Date       |

|               |                  |                     |            |
|---------------|------------------|---------------------|------------|
| Squad Leader: | Raquel Velasquez | IM Raquel Velasquez | 10/03/2023 |
|               | Signature        | Print Title & Name  | Date       |

|           |           |                    |      |
|-----------|-----------|--------------------|------|
| Reviewer: |           |                    |      |
|           | Signature | Print Title & Name | Date |